

****31.01.2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in December 2023 regarding the operator Sector 1 of the Municipality of Bucharest and found a violation of the provisions of Article 58 paragraph (1) letters a) and e) of Regulation (EU) No. 2016/679 and Article 14 paragraph (5) letter e) of Law No. 190/2018.

As such, the operator was sanctioned with a fine of 10,000 lei. The investigation was initiated following complaints regarding a possible violation of the provisions of Regulation (EU) No. 2016/679. Thus, the operator Sector 1 of the Municipality of Bucharest, through resolutions of the Local Council, established how the residents of Sector 1 can submit the necessary documents to benefit from the financial incentives of the program "Local measures aimed at ensuring energy needs and improving energy consumption in households in Sector 1," namely in physical format or to an email address created strictly for the purpose of implementing the program. However, Sector 1 of the Municipality of Bucharest provided beneficiaries with an online platform, <https://ticheteanticriza.primarias1.ro>, for data collection, purchased before the draft resolution was debated and approved within the Local Council. During the investigation, the operator did not respond to repeated requests for information sent by the National Authority for the Supervision of Personal Data Processing. Therefore, since the operator did not provide the information requested by our institution, considering the public institution status of the operator in relation to the provisions of Law No. 190/2018, it was sanctioned with a warning. At the same time, a remediation measure was ordered, consisting of providing/communicating all requested information.

Since the operator Sector 1 of the Municipality of Bucharest did not fulfill the previously ordered measure through a remediation plan within the deadline set by the authority, the investigation continued. Given that the operator did not prove compliance with the ordered remediation measure, the National Authority for the Supervision of Personal Data Processing sanctioned Sector 1 of the Municipality of Bucharest with a fine for violating the provisions of Article 58 paragraph (1) letters a) and e) of Regulation (EU) No. 2016/679 and Article 14 paragraph (5) letter e) of Law No. 190/2018. At the same time, during the investigation, in accordance with the provisions of Article 58 paragraph (2) letter d) of Regulation (EU) No. 2016/679, the National Authority for the Supervision of Personal Data Processing applied the corrective measure to the operator to provide/communicate all requested information necessary for resolving the reported issues.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****